

26LBCV00328 26LBCV00328

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Background Facts

Plaintiff, Jamie Anderson filed

this action against Defendants, Century Villages at Cabrillo, Inc., Century Villages Property Management, LLC, City of Long Beach, and County of Los Angeles for damages arising out of a trip and fall on a hole in the lawn of Defendants' property. Plaintiff's

complaint includes causes of action for general negligence against the Century defendants and premises liability against all defendants. Plaintiff has dismissed the County.

Demurrer

a.

Legal Standard on Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purpose of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true, however improbable they may be.

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* 39 Cal.3d 311 (1985). No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). A demurrer is brought under CCP § 430.10 [grounds], § 430.30 [as to any matter on its face or from which judicial notice may be

taken], and § 430.50(a) [can be taken to the entire complaint or any cause of action within]. Specifically, a demurrer may be brought per CCP § 430.10(e) if insufficient facts are stated to support the cause of action asserted. Per CCP §430.10(a) a demurrer may be brought where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. Furthermore, demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. CCP § 430.10(f).

However, in construing the allegations, the court is to give effect to specific factual allegations that may modify or limit inconsistent general or conclusory allegations. *Financial Corporation of America v. Wilburn*, 189 Cal.App.3rd 764, 769 (1987). And, if the facts pled in the complaint are inconsistent with facts which are incorporated by reference from exhibits attached to the complaint, the facts in the incorporated exhibits control. Further, irrespective of the name or label given to a cause of action by the plaintiff, a general demurrer must be overruled if the facts as pled in the body of the complaint state some valid claim for relief. Special demurrers are not allowed in limited jurisdiction courts. (CCP § 92(c).)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. *Goodman v. Kennedy*, 18 Cal.3d 335, 348 (1976). The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

Finally, CCP section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP §430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP §430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP §430.41(a)(3).)

b. Meet
and Confer

Defense Counsel declares he sent a meet and confer letter and invited Plaintiff to meet and confer, but Plaintiff did not respond. The Code requires meet and confer "in person or over the telephone." The Court will rule on the demurrer despite this requirement, but Defense Counsel must make active efforts to do so in the future in this and other actions.

c. Gov
Code §945.5

Defendant demurs to complaint, correctly noting that the sole claim for premises liability against it is fatally defective per Cal Gov Code §945.5, which requires a plaintiff to submit a government tort claim with respect to the acts upon which his complaint is based prior to filing suit against the public entity. Failure to allege compliance with the statute is grounds for demurrer. *Wills v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1119. The demurrer is sustained due to Plaintiff's failure to allege compliance with the Government Tort Claims Act.

d. Statutory
Basis for Second Cause of Action

Defendant also argues the sole cause of action pled against it, the second cause of action, fails because Plaintiff did not state a statutory basis for the claims. Gov Code §815(a) requires a statutory basis for all claims pled against a governmental entity. Pursuant to *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899, §815 abolished all common law claims against government entities. Because the sole cause of action pled against the City is the common law claim of premises liability, the demurrer is sustained.

e. Leave
to Amend

It is not up to the Court to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading. *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Hendy v. Losse* (1991) 54

Cal.3d 723, 742.

A plaintiff may not amend as a matter of right, and in order to be in a position to complain upon appeal of an abuse of discretion in sustaining a demurrer without leave to amend, he must ask permission to amend, unless it is made to appear that he had no opportunity to ask such permission. *Williams v. Hinckley* (1930) 109 Cal.App. 574, 576.

In light of the lack of opposition, Plaintiff has necessarily failed to meet this burden, and leave to amend is denied.

3. Case Management Conference

The parties are reminded that there is a CMC on calendar concurrently with the hearing on the above demurrer. The Court asks the parties to make arrangements to appear remotely at the hearing on the demurrer and CMC.